

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

June 12, 2026

#	Case Name	Tentative
1.	Kennedy vs. Emanuel 22-01248389	Motion to Compel Deposition (Oral or Written) OFF CALENDAR
2.	Lee vs. Sunny Fresh Cleaners Inc. 23-01361660	1. Motion to Compel Production (x2) 2. Order to Show Cause re: Dismissal (Entry of Default/Default Judgment) Plaintiff Bomse Lee's Motion for Pretrial Discovery of Defendants Sunny Fresh Cleaners, Inc. and Kwang Hoon Choi's Financial Records is GRANTED.

Civil Code § 3295 (c) states, in part, as follows:

Upon motion by the plaintiff supported by appropriate affidavits and after a hearing, if the court deems a hearing to be necessary, the court may at any time enter an order permitting the discovery otherwise prohibited by this subdivision if the court finds, on the basis of the supporting and opposing affidavits presented, that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294.

Before a trial court may enter an order permitting discovery of a defendant's financial condition, it must (1) weigh the evidence submitted in favor of and in opposition to motion for discovery, and (2) make a finding that it is very likely the plaintiff will prevail on his claim for punitive damages; in this context, the DCOA interpreted the words "substantial probability" to mean "very likely" or "a strong likelihood". (*Jabro v. Superior Court* (2002) 95 Cal.App.4th 754, 758).

The plaintiff must establish there is a substantial probability s/he will prevail on the Civil Code §3294 claim. (*Kerr v. Rose* (1990) 216 Cal.App.3d 1551, 1565-1566 for the court to grant an order permitting pretrial discovery of the defendants' financial condition. (*Rawnsley v. Superior Court* (1986) 183 Cal.App.3d 86, 91). It is not enough for plaintiff merely to present evidence that would support a finding (prima facie proof) of "oppression, fraud, or malice." (*Jabro, supra*, 95 Cal.App.4th at 759.)

Civil Code § 3294(a) authorizes punitive damages in an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.

Plaintiff submits the declaration of Sea H. Oh, counsel for Plaintiff, to establish that there is a substantial probability that he will prevail on his punitive damages claim.

Mr. Oh states through deemed Requests for Admission, Defendants have judicially admitted that Defendant Kwang Hoon Choi terminated Plaintiff based on his age despite knowing such discrimination was illegal, and that Defendants had no legitimate business justification for the termination. (Oh Decl., ¶¶ 7-8.) These admitted facts establish a substantial probability that Plaintiff will prevail on his punitive damages claim.

		Plaintiff contends that evidence of Defendants' financial condition is essential to enable the court to determine an appropriate punitive damages award at the default judgment or prove-up hearing. Without access to financial information, the Court would be required to speculate as to Defendants' net worth, frustrating the deterrent and punitive purposes of Civil Code section 3294. The motion has not been opposed by Defendants, and they have failed to present evidence disputing that it is likely Plaintiff will prevail on its claim for punitive damages. Accordingly, the motion is GRANTED. Plaintiff is permitted to engage in pretrial discovery of Defendants' financial condition pursuant to Civil Code § 3295(c). The OSC re: Dismissal hearings are continued to December 17, 2026, at 9:30 a.m. in Department C12. Plaintiff Moving Party to give notice.
3.	Reichert vs. Farris 25-01479895	1. Motion for Sanctions 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Special Interrogatories 4. Motion to Compel Production 5. Motion to Compel Response to Requests for Admissions ALL MOTIONS CONTINUED. See ROA 133
4.	Cho vs. American Honda Motor Co., Inc. 25-01452448	Motion for Discovery Sanctions <u>Plaintiff's Continued Motion for Discovery Sanctions</u> Plaintiff Kyung Ho Cho's Motion for Discovery Sanctions was originally heard on 5/1/26. On the day before the original hearing date, Defendant made some effort to comply with the court's 10/3/25 order compelling Defendant to provide further responses to Plaintiff's Request for Production of Documents, request Nos. 7, 8, 17, 19, 20, 41, 52, 53, 54, 56, and 57. The Court continued this hearing, as it appeared the parties could possibly resolve this dispute if given further opportunity to meet and confer. To the Court's disappointment, and based upon Plaintiff's meet and confer statement, filed on 5/29/26, it appears that nothing has been